



JAMAICA CONSTABULARY FORCE

Standard Operating Procedures for the Review of Correspondence and Files Submitted to the Legal Affairs Division

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1.0 Introduction

The Legal Affairs Division (LAD) is the legal arm of the Jamaica Constabulary Force (JCF), located at the Office of the Commissioner of Police, with outstations across the JCF. The LAD is tasked with providing consistent and comprehensive legal guidance, not only in the investigation of criminal offences, but in the area of general legal advice on a broad category of legal issues.

In addition to the function of providing legal advice and guidance, the LAD is responsible for training members - particularly as it relates to the various legislations utilized by the JCF - and for reviewing and making submissions on legislation to Parliament to ensure that the interests of the Force are advanced. Members of the LAD also represent the JCF in certain applications before the court and at tribunal hearings, in accordance with force directives. Additionally, members of the LAD provide critical support in the area of corporate governance by preparing/ reviewing contracts, memoranda of understanding and other agreements entered into by the Force.

2.0 Purpose

The purpose of these standard operating procedures is to ensure that any file/correspondence that is dealt with by the LAD is accurately accounted for and disseminated in a timely manner.

3.0 Scope

These standard operating procedures apply to all sworn and unsworn members assigned to the Legal Affairs Division. It outlines the procedures on how correspondence is to be received, actioned and disseminated.

4.0 Abbreviations and Acronyms

INDECOM	The Independent Commission of Investigations
JCF	Jamaica Constabulary Force
LAD	Legal Affairs Division
MOU	Memoranda of Understanding

5.0 Definitions

- 5.1 Correspondence:** Any communication passing between correspondents.
- 5.2 Member:** Sworn and Unsworn Members of the Jamaica Constabulary Force assigned to the LAD.
- 5.3 Supervisor:** Director of the LAD or the Senior Legal Officer of the LAD as the case may be.
- 5.5 Requesting Party:** A person or entity who requests the services of the LAD.

- 5.6 Turnaround Time:** Time within which the requesting party is to be reverted.
- 5.7 Clear Desk Requirement:** Requirement that at no time correspondence/files should be left on the desk of any member of the LAD
- 5.8 File:** A collection of papers, letters, records, etc. arranged in convenient order for storage or reference.

6.0 Responsibilities

The following is a summary of the key responsibilities:

6.1 The Supervisor will:

- 6.1.1 provide general direction and guidance to the members of the LAD;
- 6.1.2 ensure that members of the LAD are au fait with the Quality Management System and Quality Policy;
- 6.1.3 vet and assign correspondence/file to a member of the LAD within three (3) working days of receiving the correspondence/file;
- 6.1.4 in circumstances where instructions for the correspondence/file are outstanding, ensure that the member requests the outstanding instructions or any other information necessary to complete the correspondence/file. Note that if instructions are incomplete, the turnaround time does not begin to run. The turnaround time evinced in Appendix 1, excluding the assignment period are only effective once full and complete instructions are received;
- 6.1.5 review and provide feedback and/or comments on correspondence/file submitted by members for further amendments, information or corrections within the specified timelines; and
- 6.1.6 finalize the matter and dispatch same to the requesting party.

6.2 The Secretary will:

- 6.2.1 receive, stamp and log all incoming correspondence or file;
- 6.2.2 maintain and update relevant registers and/or records; and
- 6.2.3 dispatch outgoing correspondence and files finalized by Director LAD where necessary.

6.3 The Member will:

- 6.3.1 assume full responsibility for all correspondence/file assigned to them;
- 6.3.2 submit bi-weekly reports twice per month, outlining the status of all assignments for the period under review, all services rendered during the period under review, assignments scheduled beyond the period under review as well as provide updates on the status of a matter or provide any further remarks;

- 6.3.3 follow up with the requesting party or appropriate person/ entity with a view of obtaining instructions or information needed;
- 6.3.4 submit proof of services rendered, particularly, delivery of lectures, statements vetted for submission to INDECOM, legal representations at INDECOM and any other services so designated by the Supervisor; and
- 6.3.5 ensure strict adherence to the LAD Clear Desk requirement.

7.0 Standard Operating Procedures

The review of correspondence and files submitted to the LAD will be managed in accordance with the following guidelines:

7.1 Submission of Correspondence and/or File

- 7.1.1 correspondence or files should be received by the Secretary, staff assigned to the General Office or Legal Officer as the case may be;
- 7.1.2 upon receipt of a correspondence or file, it should be date stamped as evidence of the date it was received; and
- 7.1.3 record should be made in the Electronic Records Log within **one (1) day** of receipt. The record should outline the subject, date received, the person or entity that has forwarded the file, and any other relevant information.

7.2 Assignment of Correspondence and/or File

- 7.2.1 the correspondence or file should be brought to the attention of the Supervisor who will then assign the file to a member of the LAD within **three (3) working days**; and
- 7.2.2 the name of the member with conduct and date of assignment must be recorded in the Electronic Records Log.

7.3 Reviewing of Correspondence and/or File

- 7.3.1 correspondence or file should be reviewed and prepared with the opinion or comments of the member as the case may be and returned to the Supervisor;
- 7.3.2 correspondence or file should be reviewed and where necessary, feedback should be provided to the member in regards to the opinion or comments for further information and/or corrections; and
- 7.3.3 correspondence or files must be resubmitted within the specified timelines:
 - i. **Legal Opinions - within fourteen (14) working days**
 - ii. **Memoranda of Understanding (MOUs), Contracts, and Legislative Reviews - within ten (7) working days**

7.4 Final Review and Submission and/or Dispatch of Correspondence or File

- 7.4.1 Legal Opinions must be submitted within fourteen (14) working days to the Supervisor who assigned the matter;

- 7.4.2 Memoranda of Understanding (MOUs), Contracts, and Legislative Reviews must be submitted within seven (7) working days to the Supervisor who assigned the matter (**See Appendix 1**);
- 7.4.3 upon second submission after reviewing, correspondence or files shall be finalized and dispatched to the requesting party;
- 7.4.4 dispatch regarding second submission should be made within the thirty (30) working days timeframe for Legal Opinions and twenty (20) working days timeframe for Memoranda of Understanding (MOUs), Contracts, and Legislative Reviews. Record should be made in the LAD's Dispatch Book or the Outgoing Compound Book as the case may be, and the Electronic Records Log;
- 7.4.5 the requesting party is required to sign the LAD's Dispatch Book or the Outgoing Compound Book as the case may be, acknowledging receipt of the correspondence/file. If dispatched by email, only the Electronic Records Log shall be updated; and
- 7.4.6 in exceptional circumstances, the turnaround time may be extended provided that justification for such extension is reduced in writing.

8.0 Legislative Authority/Guiding Principles

- 8.1 The Legal Profession Act (1972)
- 8.2 The Legal Profession (Amendment) Act, 2012
- 8.3 Force Orders No. 3049 treating with the Legal Affairs Division Policy Guidelines

9.0 Relevant Forms/Records

- 9.1 Electronic Records Log
- 9.2 Dispatch/Outgoing Compound Book

Appendix 1: Summary of Turnaround Times for Correspondence/File submitted to the
Legal Affairs Division

Type of Correspondence /File	Time for Assignment of Matter	Time for Opinion/ Comments from Legal Officer	Time for Review and Finalizing by Supervisor	Overall Turnaround Time
Legal Opinion	3 working days	14 working days	13 working days	30 working days
Contract/MOU	3 working days	7 working days	10 working days	20 working days
Legislative Review	3 working days	7 working days	10 working days	20 working days

Appendix 2: Specimen of LAD Electronic Records Log

JCF/LAD/PR/SSs/0001/2022/F01															JAMAICA CONSTABULARY FORCE Legal Affairs Division Electronic Records Log					Filing Key Opinions - Green MOUs - Yellow Contracts - Orange Leases - Blue Training Request- Blue Grey Legislative Review - Dark Grey Claims/Memo/Requests etc. - Grey COE File/ Admin File/Miscellaneous File - White				
[Month, Year]																								
Cons No.	Date Received	Office Received From	Date Assigned	Subject	Type of Matter	Assigned to	Assigned by Memo/Email /Letter	Legal Officer's Due Date	Date Submitted for Review	Department's Due Date	Date of Response	Date Dispatched	Office Sent to	Movement/Remarks										

Appendix 3: Specimen of LAD Outgoing Compound Book

JCF/LAD/PR/SSs/0001/2022/F02				
 JAMAICA CONSTABULARY FORCE Legal Affairs Division Outgoing Compound Book				
Cons No.	Date	Subject	Office Sent to	Received by and Date
[Month, Year]				

Appendix 4: Process Flow Chart for the review of Correspondences/Files submitted to Legal Affairs Division

